

Court No. - 3

Case :- WRIT - C No. - 19336 of 2011

Petitioner :- Kirti Sheet Grah Pvt. Ltd.

Respondent :- U.P. Power Corp. Ltd. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- Rajesh Tripathi, R.K. Mishra

Hon'ble Amitava Lala, J.

Hon'ble Sanjay Misra, J.

The petitioner's contention before this Court is that the impugned order dated 23.03.2011 passed by the Managing Director of Dakshinanchal Vidyut Vitran Nigam Ltd., Agra is liable to be quashed on the ground that the distribution lines have been intended to be drawn in favour of respondent nos. 5 and 6, the other cold storages, from the line of the petitioner. According to the petitioner, if it is allowed then the petitioner's supply of electricity will suffer a lot in connection thereto. Admittedly, supply is of 150 KVA. From the order impugned we find that there is a Clause being 4.29 (a) under the Uttar Pradesh Electricity Supply Code, 2005, which is as follows:

"4.29 (a) The Licensee may use the service line and other apparatus to give supply to other consumers provided that the supply to the consumer who has paid for them is not affected."

All the contesting respondents i.e. the concerned Power Corporation, Respondent nos. 5 and 6 and the State are present before us. Admitted position is that the feeder, by which the supply is made to the petitioner, is not independent feeder and it is property of the Corporation and the Corporation is entitled to supply the electricity through that feeder line to others also. Learned Counsel appearing for the Corporation has drawn our attention to Clause 3.4 (a) and (b) of the Uttar Pradesh Electricity Supply Code, 2005 to establish that only in case of 1000 KVA and 500 KVA, subject to willingness to bear all applicable charges and technical feasibility etc., independent feeder line can be given. Even in case of independent feeder having load below 500 KVA, line is also to be released in the similar manner. Petitioner's contention is that if the supply is provided from such feeder line to other cold storages then the interest of the petitioner will be affected substantially. From the supplementary affidavit he has shown us that the line has been drawn from a particular point to his cold storage and both the new cold storages being respondent nos. 5 and 6 have been made from two sides of the petitioner's cold storage. Learned counsel appearing for the respondents has contended that they have already deposited Rs. 8,90,000/- for the purpose of drawing the line, when the learned Counsel appearing for the petitioner has contended that he has deposited Rs. 12,00,000/- three years ago. From the map, which has been prepared by the petitioner, it appears that the distance of the cold storage of respondent no.5 is far away and in fact the line has been drawn in front of cold storage of respondent no.5. Therefore, we do not find any discriminatory and arbitrary act on the part of the respondent authority in respect of supply of the electricity.

Moreover, when clause 4.29(a) is protecting the right of the petitioner by saying that the supply can be given to other consumers without affecting the

right of the petitioner, we do not find any reason to interfere with the action of the authority.

Accordingly, the writ petition is dismissed, however, without imposing any cost.

So far as claim and counter claim etc. are concerned, those can not be adjudicated by us. It will be governed by appropriate arbitration clause being clause 16 of the agreement dated 23.01.2009. Therefore, upon being called the Chairman and Managing Director of the Corporation, the appropriate authority as per the clause can be able to decide the issues involved therein.

Order Date :- 11.4.2011

MAA/-